"The doctrine of incidental or ancillary power is founded upon the principle that in a case where on the face of a statute, it appears that the legislative subject falls both in the Union as well as the State List, but on a careful scrutiny it becomes clear that it falls merely incidentally in one list but substantially in another list. However, it cannot be regarded as the case of substantial encroachment trespassing into another field. The incidental encroachment, therefore, means that in enacting a legislation, the legislature has not traversed beyond the legislative field allotted to it by the arrangement of distribution of powers in the respective entries in the list concerned in the Seventh Schedule."

3. Important Cases

The important cases relating to the doctrine of incidental and ancillary powers and their judgements are given in Table 94.5.

Table 94.5 Important Cases Relating to the Doctrine of Incidental and Ancillary Powers

Sl. No.	Case (Year)	Supreme Court Judgement
1.	Chaturbhuj vs. Union of India (1959)	It held that the power to impose tax includes power of raising revenue by imposing licence fee.
2.	Rai Ramkrishna vs. State of Bihar (1963)	It held that the power to enact laws on a subject includes the power to make a valid law retrospectively, if the existing law on the same subject is declared as unconstitutional.
3.	Pathumma vs. State of Kerala (1978)	It held that the power to enact laws in respect of "money-lending and money-lenders; relief of agricultural indebtedness" includes power to enact a law relating to debt of agriculturists already paid by sale of property in execution of the decree and any measure to provide relief and recompense.
4.	State of Haryana vs. Sant Lal (1993)	It held that the power to levy sales tax cannot be used to include within that law merely transporters of goods.
5.	Godfrey Phillips India Limited vs. State of U.P. (2005)	It held that the power to impose tax includes all events concerning that tax, unless an event is included in another list.

DOCTRINE OF PRECEDENT

1. Meaning of the Doctrine